

26STCV11797 26STCV11797

County: los-angeles

Division: Civil Law and Motion

Department: 529

Hearing date: 2026-07-21

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Case Number: 26STCV11797 Hearing Date: July 21, 2026 Dept: 529

PEEPLES v. VARLEY CLOTHING INC., et al.

motion to strike PORTIONS OF THE COMPLAINT

Date of Hearing: 7/21/2026 Trial Date: None set

Department: 45 Case No.: 26STCV11797

Moving Party: Defendant Varley Clothing Inc.

Responding Party: Plaintiff Brianna Peeples

BACKGROUND

This action arises out of the employment relationship between Plaintiff Brianna Peeples ("Plaintiff") and Defendant Varley Clothing Inc. ("Defendant"). On April 13, 2026, Plaintiff filed the operative Complaint against Defendant, asserting a sole cause of action for Waiting Time Penalties under Labor Code Section 203.

On June 18, 2026, Defendant filed the instant Motion to Strike. On July 1, 2026, Plaintiff filed an Opposition. On July 14, 2026, Defendant filed a Reply.

[Tentative] Ruling

Defendant Varley Clothing Inc.'s Motion to Strike is DENIED. Defendant is ordered to file an Answer to the Complaint within 15 days of this order.

LEGAL STANDARD

"Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof, but this time limitation shall not apply to motions specified in subdivision (e)." (Code Civ. Proc., § 435, subd.

(b)(1.)*cc*

"The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading." (Code Civ. Proc., § 436, subd. (a); see also *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 ["Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded"].)*c*

The court may also strike all or any part of any pleading not drawn or filed in conformity with California law, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) An immaterial or irrelevant allegation is one that is not essential to the statement of a claim or defense; is neither pertinent to nor supported by an otherwise sufficient claim or defense; or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)*cc*

ANALYSIS

Defendant moves to strike Plaintiff's request for attorney's fees on the grounds that the Complaint does not allege any cause of action for nonpayment of wages, fringe benefits, health and welfare or pension fund contributions pursuant to Labor Code Section 218.5.

Prayer for Relief, ¶2 at 5:3: "For reasonable attorneys' fees pursuant to Labor Code section 218.5."

Here, Plaintiff brings this action against Defendant for waiting time penalties under Labor Code Section 203, which expressly states: "If an employer willfully fails to pay, without abatement or reduction, in accordance with Sections 201, 201.3, 201.5, 201.6, 201.8, 201.9, 202, and 205.5, any wages of an employee who is discharged or who quits, the wages of the employee shall continue as a penalty from the due date thereof at the same rate until paid or until an action therefor is commenced; but the wages shall not continue for more than 30 days." (Lab. Code, § 203, subd. (a) [emphasis added]; Compl., ¶12.)

Specifically, the Complaint alleges that on or about August 5, 2024, Defendant employed Plaintiff as a model for a still image shoot conducted for the production of still images for use in print, digital, or internet media. (Compl., ¶7.) Defendant agreed to Plaintiff wages at the rate of \$4,000.00 for the one day of employment. (Id., ¶8.) Pursuant to Labor Code Section 201.6, Plaintiff was entitled to be paid her wages by Defendant's next regular payday as defined in Labor Code Section 201.6, subdivision (a)(2) following Plaintiff's termination from her employment. (Id., ¶9.) Defendant's next regular payday was required to occur on or before August 26, 2024. (Id.) Defendant failed to make payment of Plaintiff's wages on or before Defendant's next regular payday and did not make payment until more than 30 days after the next regular payday. (Id., ¶¶10-11.)

At issue is whether an action brought under Labor Code Section 203 for waiting time penalties constitutes "an action for nonpayment of wages" for purposes of recovering attorney's fees under Labor Code Section 218.5, subdivision (a), which explicitly states: "In any action brought for the nonpayment of wages, fringe benefits, or health and welfare or pension fund contributions, the court shall award reasonable attorney's fees and costs to the prevailing party if any party to the action requests attorney's fees and costs upon the initiation of the action." (Lab. Code, § 218.5, subd. (a) [emphasis added].) For the following reasons below, the Court finds that it does.

It is undisputed that Labor Code Section 203 was enacted to promote full and prompt payment of an employee's earned wages, as well as punish employers for failing to do, thus has been technically classified as "penalties." (See generally *Pineda v. Bank of America, N.A.* (2010) 50 Cal.4th 1389, 1400–1401.) However, California courts have held that, "[u]nlike an employee suing under section 226.7, an employee suing for failure to pay wages by the deadline established in [Labor Code sections 201 and 202] is suing for nonpayment of wages for purposes of an attorney fee award under Labor Code section 218.5." (*Naranjo v. Spectrum Security Services, Inc.* (2022) 13 Cal.5th 93, 112; see also *Kirby v. Immoos Fire Protection, Inc.* (2012) 53 Cal.4th 1244, 1256 [holding a lawsuit based on violation of Labor Code Sections 201 and 202 are claims for

nonpayment of wages].) Labor Code Sections 201 and 202 are explicitly mentioned in Labor Code Section 203. Although the Complaint does not explicitly set forth a separate cause of action for violation Labor Code Section 201.6, Plaintiff is suing Defendant, i.e., her employer for failure to pay her wages by the deadline established in Labor Code Section 201.6, which like Labor Code Sections 201 and 202 is mentioned in Labor Code Section 203. As such, the gravamen of Plaintiff' suit is one for nonpayment of wages.

Accordingly, the Complaint sufficiently alleges a claim for nonpayment of wages against Defendant, thus entitlement to attorney's fees under Labor Code Section 218.5.

CONCLUSION

Based on the foregoing, Defendant Varley Clothing Inc.'s Motion to Strike is DENIED. Defendant is ordered to file an Answer to the Complaint within 15 days of this order.